

Smt. Anokh W/O Shri Jai Prakash D/O Shri ... vs Jai Prakash S/O Shri Ramniwas on 3 December, 2020

Bench: Sabina, Chandra Kumar Songara

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

D.B. Civil Misc. Application No. 1035/2020

In

D.B. Civil Miscellaneous Appeal No. 2322/2020

Smt. Anokh W/o Shri Jai Prakash D/o Shri Rameshwarlal, Aged
About 42 Years, Resident Of Village Vijayapura @ Rundiya, Tehsil
Uniyara, Distt. Tonk (Rajasthan)

---Appellant

Versus

Jai Prakash S/o Shri Ramniwas, Aged About 43 Years, At Present
Resident Of Thikariya, Post Sureli, Thesil Uniyara, District Tonk
(Rajasthan).

---Respondent

For Appellant(s) : Mr. Mohit Balwada, Advocate through Video Conferencing HON'BLE MRS. JUSTICE SABINA HON'BLE MR. JUSTICE CHANDRA KUMAR SONGARA Order 03/12/2020
Vide this order, application under Section 5 of the Limitation Act would be disposed of.

We have heard learned counsel for the applicant and have gone through the record available on the file carefully.

Respondent has filed the petition under Section 13 of the Hindu Marriage Act, 1955 against the applicant seeking a decree of divorce. Applicant moved an application under Order 7 Rule 11 of Code of Civil Procedure, 1908 for rejection of the divorce petition. The said application was dismissed by the trial court vide order dated 25.07.2019. A challenge to the said order was made (2 of 2) by filing the present appeal and the appeal is time barred by 306 days.

A perusal of the application seeking condonation of delay in filing the appeal reveals that no cogent explanation has been given for condonation of delay in filing the appeal. The impugned order was passed in the presence of the applicant. We are conscious of the fact that an application seeking condonation of delay in filing the appeal is liable to be decided by adopting a liberal approach. However, in the present case, no cogent explanation has been given for delay in filing the appeal. In the facts and circumstances of the present case, we are of the opinion that the delay in filing the appeal cannot be described as bona fide or unintentional.

Accordingly, application under Section 5 of the Limitation Act is dismissed.

Consequently, appeal is dismissed being time barred. (CHANDRA KUMAR SONGARA),J (SABINA),J Satyendra/21 Powered by TCPDF (www.tcpdf.org)